

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Gordon P. Gallagher

Date: June 26, 2023
Deputy Clerk: Donald L. Clement
Court Reporter: Kevin Carlin
Law Clerk: Zachary Dwyer and Caitlin Grimmer

Civil Action No. **1:21-cv-01748-GPG-MEH**

Counsel:

JASON D. YEAGER

DezaRae D. LaCrue
Joshua Ty Hotchkiss

Plaintiff,

v.

ALLSTATE FIRE AND CASUALTY INSURANCE
COMPANY,

Kurt Hans Henkel
Winslow Russell Taylor, III

Defendant.

COURTROOM MINUTES

Jury Trial, Day 1

8:04 a.m. Court in session. Jury panel not present.

Appearances of Counsel.

Also seated at Plaintiff's table: Jason Yeager. Also seated at Defendant's table: Raul Sanchez.

Opening remarks by the Court. Parties discussion pertaining to witnesses.

ORDERED: At the conclusion of the jury trial, counsel for the parties shall retain custody of their respective original exhibits until such time as all need for the exhibits has terminated and the time to appeal has expired or all appellate proceedings have been terminated, plus sixty days.

8:08 a.m. Court in recess.

9:10 a.m. Court in session.

Jury Selection

Jury panel is present.

Court's remarks to prospective jurors.

Introduction of Counsel and Parties.

Jury is given the oath by the Judge. Voir dire of prospective jurors by the Court.

9:35 a.m. Bench conference.

Jurors excused for cause:

1. **100461217**
2. **100435756**
3. **100459358**
4. **100470966**
5. **100451139**

10:11 a.m. **Court in recess.**

10:26 a.m. **Court in session.**

10:26 a.m. Voir dire by the plaintiff by Mr. Hotchkiss.

10:55 a.m. Voir dire by the defense by Mr. Henkel.

11:25 a.m. Bench conference

Juror 100427319 excused for cause.

11:28 a.m. Bench conference regarding challenge for cause.

Juror 100462175 excused for cause.

Juror 100466828 excused for cause.

11:48 a.m. Bench conference regarding challenge for cause.

The parties exercise their peremptory challenges.

Plaintiff's challenges:

1. 100470966
2. 100430181
3. 100444915

Defendant's challenges:

1. 100451074
2. 100453139
3. 100444393

9 Jurors sworn to try case:

1. 100433051
2. 100467299
3. 100432791
4. 100470966
5. 100428399
6. 100461453
7. 100468643
8. 100448987
9. 100436817

Court provides instructions to the jury. The Court reviews the Code of Conduct with the members of the jury.

The Court's Juror Code of Conduct is distributed to all jurors and counsel.

12:01 p.m. Jury excused.

Further discussion and comments.

12:03 p.m. Court in recess.

1:16 p.m. Court in session.

Discussion outside the presence of the jury.

1:27 p.m. Jury present.

Court reads preliminary summary of the case and provides instructions to the jury.

1:46 p.m. Opening statement for the plaintiff by Ms. LaCrue.

2:09 p.m. Opening statement for the defense by Mr. Taylor.

2:26 p.m. Jury excused.

ORDERED: Defendant's oral motion for Rule 615 sequestration is granted, all witnesses are sequestered and excluded from the courtroom.

2:28 p.m. Court in recess.

2:42 p.m. Court in session.

2:42 p.m. Jury Present

2:43 p.m. Plaintiff's witness Mr. Raul Sanchez is called and placed under oath by the Judge.

Direct examination of Mr. Sanchez by Mr. Hotchkiss.

Court admits Plaintiff's Stipulated Exhibits 15 page 9, 20, 16, and 17.

3:55 p.m. Jury released, to return at 8:15 a.m. on Tuesday, June 27, 2023.

Discussion outside of the Jury.

3:57 p.m. Court in recess. Trial continued.

Total time in court: 5 Hours 24 Minutes.